

2026-08-17 · The normative strand enters the corpus: Véliz, market-inalienability, and the fourth objection

The Privacy-is-Value Research Programme

Session: first-person-directed expansion session (lit-review run 04 + integration pass), 2026-08-17. **Verdict first:** the anti-commodification position now has a seat in WP-14's related work, answered by partial vindication rather than rebuttal; both novelty legs the new strand touches were NARROWED under adversarial adjudication, and the concessions were written into the paper in the same pass. The corpus gained 31 proposed citations across four modalities; two of them (Roessler 2015; the Véliz corpus) fill a pole the related-work section had engaged nowhere.

1. How the strand entered

The entry was first-person, not machine-initiated. The First Person asked whether Carissa Véliz's work bore on the papers. A scan of the existing corpus and both prior lit-review runs (02, 2026-07-15; 03, earlier on 2026-08-17) confirmed she appeared nowhere: run 03's law-and-standards sweep had searched legal scholarship, and the anti-commodification position lives mainly in moral philosophy, a modality the sweep design did not carry. That absence was itself the finding: WP-14's proper-tisation subsection engaged the market-with-safeguards critics (Laudon, Samuelson, Schwartz, Purtova, Prins) and the fiduciary alternative, but no voice holding that personal data should not be priced at all.

Run 04 (workflow wf_23f4f7ad-527) was configured to correct the modality gap, not merely to add one author. Four sweep seats searched independently: the market-inalienability lineage (Radin 1987; Calabresi and Melamed 1972; Satz 2010; Sandel 2012; Anderson 1993); the Véliz corpus with exact bibliography and its academic reception (Privacy Is Power, 2020; The Ethics of Privacy and Surveillance, OUP 2024; reviews in International Data Privacy Law, Surveillance and Society, Journal of Moral Philosophy); collective and group privacy with the formal externality economics beside it (Viljoen 2021; Taylor, Floridi and van der Sloot 2017; Fairfield and Engel 2015; Choi, Jeon and Kim 2019; Acemoglu et al. 2022; Ichihashi 2021); and formal precedents for pricing a privacy quantity while the underlying data stays inalienable. The sweep surfaced 58 items; the closest single antecedent to the missing pole is Roessler (2015), the moral-limits-of-markets analysis applied to personal data trade directly.

2. The adversarial discipline held against our own claims

Two refuter seats then attacked the joins the new strand exposes, under the standing rules (absence reported as scope-bounded absence, never as novelty; refuters isolated from any prover argument; all seats on shared model weights, a stated limit). Both targets returned NARROWED:

- **The inalienability leg.** Pricing a formal privacy quantity while the buyer never receives the

records is an established design: differential-privacy query pricing already bounds what combined purchases can reconstruct (Li et al. 2013), and federated designs add subject-side retention (FL-Market, 2021). What survives to WP-14 is narrower and stated in the paper as such: an adversary-relative, time-drifting reconstruction bound priced within a subject-held stock whose inalienability is theorised as a property of the capital stock, an inalienability rule in the Calabresi-Melamed sense enforced by the bound rather than by a court, not as a mechanism feature of a market design.

- **The externality integration.** The pooling remedy is anticipated inside the social-data-externality line itself (Bergemann and Wang 2021), so the paper now attributes the instrument and claims only the valuation it operates on.

A judge seat converted the sweeps and verdicts into a positioning map of seven poles and ten concrete citation placements. All of it is on file as generated artefacts (litreview run-04 manifest, normative-strand map, bibliography additions) with the raw run data beside them.

3. What the paper now says, and where Véliz sits in it

WP-14's propertisation subsection now levels four standing objections at propertisation instead of three. The fourth is the anti-commodification objection: commodification of personal data is corrosive per se (Radin's personhood ground; Roessler's data-specific argument; Véliz's live ban position, cited in both its public and scholarly forms; the doctrinal expression in Custers and Malgieri 2022 and EDPS Opinion 4/2017; Satz's noxious-markets criteria as the test form).

The answer written into the paper is partial vindication, and the chronicle records why that shape was chosen over rebuttal. On the stock, the architecture agrees with the pole: the underlying record is never marketed, and its inalienability is structural rather than a doctrinal rule a legislature could repeal, which is the permanence the pole demands. What the architecture prices is scoped disclosure within the retained stock, and on Satz's own criteria the noxious features of existing data markets (weak selling-side agency; third-party externalities) are the features the architecture is built to remove, with the third-party leakage priced into the bound rather than scoped away (Barocas and Nissenbaum 2014). What the paper does not answer, and says so, is the strong corruption claim that any pricing of any privacy-adjacent quantity degrades the good (Anderson; Sandel); against that position the paper's claim is only conditional: given that the observed data economy prices behavioural data continuously without asking, a bound-priced scoped disclosure within an inalienable stock is the pricing form that concedes most of what the objection defends.

The collective-privacy strand entered beside it: a paragraph in related work (Viljoen; Taylor, Floridi and van der Sloot; Fairfield and Engel) and a matching limit in the threats-to-validity section conceding that a per-subject valuation cannot claim to govern the population-level interest. WP-04, the shelf-life systematisation, took exactly one motivating citation (Barocas and Nissenbaum 2014), per the judge's one-cite budget for that paper.

4. Reversals and defects recorded

- Run 03's modality design missed moral philosophy entirely; recorded here as the cause of the Véliz absence, corrected by run 04's seat list. Future sweep configurations should carry an ethics/philosophy modality when the target claim has a normative edge.
- The figures-fence check reports seven findings against WP-14 at lines that quote the fence in prohibition context (frontmatter note and an HTML comment); verified identical at git HEAD,

so they pre-date this session's edits. Not laundered here; flagged for a checker refinement decision (prohibition-context exemption) at A0/first-person discretion.

- Cofone's publication year is carried as 2022 with an A4 confirm flag (sources split 2021/2022); the Bergemann-Wang tutorial and the FL-Market venue/year pairing carry A4 confirm flags likewise.

5. Handoff

- **First Person:** adjudicate run-04 verdicts and the two NARROWED restatements (they are candidates, not adopted canon); P4 remains yours on every touched artefact. If reaching out to Véliz, this chronicle is the accurate account of how her work entered: identified by you, swept adversarially, and answered in the paper by partial structural vindication of her inalienability position, with the disagreement (that scoped disclosure may be priced) stated openly.
- **A4:** verify the 21 new WP-14 reference entries and the WP-04 entry against primary records before tier-A use; confirm flags noted above.
- **A5/A9:** the revised Section 2 and Section 6 of WP-14 need a fresh adversarial pass and a checks re-run before the paper returns to awaiting-P4 status.
- **A0:** manifest rows for WP-04/WP-14 should record this revision leg; ledger entry proposed for the checker false-positive class.